EXCLUSIVE 360-DEGREE RECORDING, CO-PUBLISHING, PERSONAL MANAGEMENT AND ANCILLARY RIGHTS AGREEMENT

THIS EXCLUSIVE 360-DEGREE RECORDING, CO-PUBLISHING, PERSONAL MANAGEMENT AND ANCILLARY RIGHTS AGREEMENT (this "Agreement") is made and entered into as of the 15th day of November, 2026 (the "Effective Date"),

BY AND BETWEEN:

1. VANGUARD SOUND & VISION LABEL GROUP LIMITED, a limited liability company incorporated under the Companies Act, 2015 of the Laws of Kenya, having its registered office at Vanguard Studios Complex, Ngong Road, Kilimani, P.O. Box 51920-00200, Nairobi, Kenya (hereinafter referred to as "Company" or "Label", which expression shall where the context so admits include its parent entities, publishing affiliates, successors in title, and assigns);

AND

2. JOHN DOE, an individual Kenyan recording artist, vocalist, songwriter, and performer professionally known as "John Doe", of ID No. 38492011 and P.O. Box 45102-00100, Nairobi, Kenya (hereinafter referred to as "Artist").

RECITALS

A. WHEREAS, Company is engaged in the business of financing, producing, manufacturing, distributing, licensing, and commercially exploiting master sound recordings, audiovisual music videos, musical compositions, live touring properties, and artist brand partnerships in the Republic of Kenya and throughout the Universe.

B. WHEREAS, Artist is a recording and performing musical artist, vocalist, and composer who desires to engage Company as Artist's exclusive record label, exclusive music publisher, exclusive personal manager, and exclusive commercial rights representative across all facets of the entertainment industry (commonly known in the music industry as a "360-Degree Agreement").

C. WHEREAS, Company agrees to invest in the recording, development, marketing, and commercial exploitation of Artist's career only upon the condition that Company participates across all of Artist's musical and non-musical entertainment income streams and acquires perpetual ownership of the Master Recordings and Co-Publishing interests as hereinafter set forth.

NOW, THEREFORE, in consideration of the mutual covenants, representations, warranties, and financial advances herein contained, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

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1. DEFINITIONS AND CONSTRUCTION

In this Agreement, including the Recitals and Schedules hereto, the following capitalized terms shall have the following meanings unless the context otherwise requires:

1.1 "Advance" means any sum paid by Company to Artist or paid by Company to any third party on Artist's behalf in connection with this Agreement, including without limitation Cash Signing Advances, Recording Costs, Music Video Production Costs, Vocal Coaching, Wardrobe and Styling, Tour Support, Independent Promotion, Radio and Digital Marketing, Legal and Accounting Fees, and Living Allowances, all of which shall be one hundred percent (100%) recoupable from Artist's Royalties and Cross-Collateralized across all accounts hereunder.

1.2 "Album" or "LP" means a conceptually unified collection of not less than twelve (12) newly recorded, previously unreleased studio Master Sound Recordings embodying Artist's featured vocal performances, having an aggregate playing time of not less than forty-two (42) minutes, excluding remixes, skits, intros, outros, radio edits, and acoustic versions.

1.3 "All-In Royalty" means that the royalty rates payable to Artist under Clause 6 include and are responsible for the payment of all royalties payable to record producers, mixers, featured vocalists, sample owners, and remixers.

1.4 "Ancillary Entertainment Activities" means any and all activities of Artist in the entertainment, media, and commercial sectors other than the creation of Master Recordings hereunder, including without limitation: (a) live concerts, festivals, club appearances, corporate gigs, and touring; (b) brand endorsements, corporate sponsorships, influencer campaigns, and appearances; (c) merchandising, apparel, fragrance, and consumer product licensing; (d) motion picture, television, radio, stage, and streaming acting or hosting; (e) literary publishing and biographical rights; and (f) direct monetization on digital and social platforms including YouTube AdSense, TikTok Creator Rewards, Instagram Badges, Twitch, and Spotify Fan Support.

1.5 "Container and Infrastructure Charge" means a mandatory deduction equal to twenty-five percent (25%) of the Gross Dealer Price or Gross Digital Receipts across all physical, digital download, streaming, and mobile ringback configurations, covering artwork, metadata encoding, server hosting, digital watermarking, ISRC administration, and packaging.

1.6 "Controlled Composition" means any musical composition (including lyrics, melody, and musical arrangement), in whole or in part, written, composed, owned, or controlled directly or indirectly by Artist or any entity affiliated with Artist during or prior to the Term and recorded or performed by Artist.

1.7 "Cross-Collateralization" means Company's unrestricted right to apply any unrecouped Advances or debits incurred under any Contract Period, Album, EP, Single, Co-Publishing account, or Ancillary Entertainment Activity against any Royalties or monies otherwise payable to Artist under any other Contract Period, Album, Co-Publishing account, or Ancillary Entertainment Activity under this Agreement or any other agreement between Artist and Company.

1.8 "Free Goods Allowance" means fifteen percent (15%) of all physical units distributed and fifteen percent (15%) of all digital streams, downloads, and caller ringback tones accounted by Digital Service Providers, which shall be deemed promotional units on which zero Royalties are payable to Artist.

1.9 "Gross Ancillary Income" means one hundred percent (100%) of all gross monies, fees, advances, equities, barter value, and consideration of any kind earned or received by or credited to Artist (or any company or person on Artist's behalf) from all Ancillary Entertainment Activities, prior to the deduction of any expenses, band payments, sound/transport costs, or taxes whatsoever.

1.10 "Master" or "Master Sound Recording" means any original fixation of sound, whether accompanied by visual images (including Music Videos) or not, embodying the performance of Artist, recorded during the Term or delivered hereunder, including all outtakes, stems, multitracks, demos, and alternate mixes thereof.

1.11 "Minimum Delivery and Release Commitment" or "MDRC" means the mandatory delivery by Artist and commercial release by Company of the number of Albums specified in Schedule 1 for each respective Contract Period.

1.12 "Net Receipts" means the actual cash monies received by Company in Kenya in Kenyan Shillings from the exploitation of Masters, after deducting: (a) the Container and Infrastructure Charge of twenty-five percent (25%); (b) the Free Goods Allowance of fifteen percent (15%); (c) third-party distribution and aggregator fees of twenty percent (20%); (d) foreign currency conversion charges, withholding taxes, VAT, and digital services taxes; (e) collection society commissions (MCSK, KAMP, PRISK); and (f) Reserves Against Returns and Chargebacks of thirty-five percent (35%).

1.13 "Territory" means the Universe, including all terrestrial, satellite, digital, metaverse, and extra-terrestrial media now known or hereafter devised.

2. EXCLUSIVE ENGAGEMENT AND TERM OF AGREEMENT

2.1 Exclusive Recording and Entertainment Services. During the Term of this Agreement, Artist shall render Artist's exclusive recording, songwriting, performing, and Ancillary Entertainment Activities solely and exclusively for Company throughout the Territory. Artist shall not record, perform, write, produce, or appear as a featured or side-artist on any sound recording, music video, or commercial campaign for any other person, firm, or corporation without Company's prior written consent.

2.2 Initial Contract Period. The Term of this Agreement shall commence on the Effective Date and shall continue for an Initial Contract Period ending twelve (12) months after the date of commercial release by Company in Kenya of the last Album required to fulfill the Minimum Delivery and Release Commitment for the Initial Contract Period (being one (1) complete Album plus four (4) standalone promotional Singles), but in no event shall the Initial Contract Period expire earlier than twenty-four (24) months from the Effective Date.

2.3 Five (5) Unilateral Option Periods. Artist hereby irrevocably grants to Company five (5) separate, consecutive, and independent options to extend the Term of this Agreement for additional Contract Periods (referred to as the "First Option Period", "Second Option Period", "Third Option Period", "Fourth Option Period", and "Fifth Option Period" respectively) upon the same terms and conditions applicable to the Initial Contract Period. Each Option Period shall run until twelve (12) months after the commercial release by Company of the Album(s) fulfilling the MDRC for that Option Period as set forth in Schedule 1.

2.4 Automatic Exercise of Options. Each Option Period shall be deemed automatically exercised by Company upon the expiration of the immediately preceding Contract Period unless Company delivers written notice to Artist explicitly declining to exercise such option at least ten (10) days prior to the expiration of the then-current Contract Period.

2.5 Suspension and Automatic Extension of Term. If Artist fails or delays in delivering any Master or Album within the delivery schedule prescribed by Company, Company may by notice (or retroactively) suspend the running of the Term and suspend all Advance or Royalty payments for the duration of such default, and the applicable Contract Period shall be automatically extended for a period equal to the length of such delay plus six (6) additional months.

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3. RECORDING PROCEDURE, CREATIVE CONTROL AND DELIVERY

3.1 Company's Absolute Creative Control. All recordings hereunder shall be made at studios, with producers, engineers, and session musicians, and embodies compositions approved in writing by Company in its sole and absolute discretion. A Master shall not be deemed "Delivered" for purposes of fulfilling the MDRC unless and until Company's A&R Director certifies in writing that the Master is both technically and "commercially satisfactory" in Company's subjective judgment.

3.2 Rejection of Masters. Company reserves the unrestricted right to reject any recorded track delivered by Artist if Company deems it unsuitable for commercial release, and to require Artist to record replacement tracks at Artist's recouped expense until a commercially satisfactory Album is assembled.

3.3 No Release Obligation. Nothing in this Agreement shall obligate Company to manufacture, distribute, promote, or commercially release any Master or Album delivered by Artist. Company's sole obligation is to consider the Masters in good faith.

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4. PERPETUAL OWNERSHIP OF MASTERS AND WORK MADE FOR HIRE

4.1 Irrevocable Assignment Ab Initio. All Masters recorded during the Term (from the inception of the recording thereof) and all artwork, photography, and Music Videos created in connection therewith shall be the sole and exclusive property of Company as a "Work Made for Hire". To the extent any Master is not deemed a work made for hire by operation of law, Artist hereby irrevocably and unconditionally assigns, transfers, and conveys to Company ab initio, exclusively, and in perpetuity throughout the Territory, all right, title, and interest (including all copyright, neighbouring rights, and renewal/extension rights under Sections 22, 28, and 33 of the Copyright Act, Cap. 130, Laws of Kenya) in and to all such Masters.

4.2 Exclusive Exploitation Rights. Company shall have the sole, exclusive, and perpetual right throughout the Territory to:

(a) manufacture, distribute, stream, sell, license, and digitally transmit the Masters in any configuration or medium;

(b) couple, synchronize, sample, remix, edit, and speed-adjust (e.g., sped-up/slowed-down TikTok versions) the Masters with any other recordings or visual images without Artist's consent;

(c) register the Masters with KECOBO, KAMP, PRISK, and international rights databases in Company's sole name as owner and producer; and

(d) refrain from exploiting any Master in Company's sole discretion without any reversion of rights to Artist.

4.3 Waiver of Moral Rights. Pursuant to Section 32 of the Copyright Act (Cap. 130, Laws of Kenya), Artist hereby irrevocably and unconditionally waives all Moral Rights of paternity and integrity in and to all Masters, Controlled Compositions, and Music Videos, and consents to any alteration, editing, truncation, or commercial pairing thereof by Company or its licensees.

4.4 Ten-Year Re-Recording Restriction. Artist covenants and agrees that Artist shall not, during the Term and for a period of ten (10) years following the expiration or termination of the Term (the "Re-Recording Restriction Period"), re-record, perform for recording, or produce for any third party or for Artist's own account any musical composition embodied on any Master recorded during the Term (including any "Taylor's Version" or acoustic re-recording).

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5. ADVANCES, RECORDING BUDGETS AND 100% RECOUPMENT FROM ARTIST

5.1 Inclusive Recording Fund. For the Initial Contract Period, Company shall establish an inclusive Recording Fund of Kenya Shillings Five Hundred Thousand (KES 500,000) (the "Recording Fund"). All Recording Costs·including studio hire, producer fees, mixing, mastering, session vocalists, sample clearances, and equipment rental·shall be paid out of the Recording Fund. Any balance remaining after completion and acceptance of the Album (if any) shall be paid to Artist as a recoupable Advance.

5.2 Excess Recording Costs. If Recording Costs for any Album exceed the authorized Recording Fund, Artist shall be solely responsible for such excess, which Company may pay and deduct from any monies (including Ancillary Entertainment Income under Clause 7 or Mechanical Royalties under Clause 8) otherwise payable to Artist.

5.3 100% Recoupment of Marketing, Video and Tour Costs ("Double-Dip Recoupment"). One hundred percent (100%) of all costs incurred by Company for:

(a) Music Video production, lyric videos, and visualizers;

(b) digital marketing, social media boosting, playlist pitching, radio promotion, DJ servicing, and PR campaigns;

(c) Tour Support, rehearsal space, band salaries, sound reinforcement, and travel; and

(d) wardrobe, styling, photography, hospitality, and Artist personal advances;

shall constitute recoupable Advances and shall be recouped one hundred percent (100%) from Artist's share of Net Receipts Royalties prior to the payment of any Royalties to Artist, while Company retains its share of Net Receipts free of recoupment.

5.4 Total Cross-Collateralization. All Advances paid or incurred under this Agreement are fully Cross-Collateralized. No Royalties shall be paid to Artist under Clause 6 (Recording), Clause 7 (360 Ancillary), or Clause 8 (Publishing) unless and until all Advances across all Contract Periods and all divisions of Company have been recouped in full.

6. RECORDING ROYALTIES AND ROYALTY REDUCTIONS

6.1 Nominal Base Royalty Rate. Subject to the deductions, reductions, reserves, recoupment provisions, and Clause 22 overrides contained in this Agreement, Company shall credit to Artist's royalty account an All-In Royalty of twelve percent (12%) of Net Receipts in respect of full-price, top-line physical Albums sold and paid for in Kenya and not returned.

6.2 Digital Streaming, Downloads and Skiza Reduction (50% Escalated Reduction). Notwithstanding Clause 6.1, on all exploitations of Masters via Digital Service Providers (including Spotify, Apple Music, Boomplay, Mdundo, Audiomack, YouTube Music, Deezer, and Tidal) and telecommunications caller ringback tones (including Safaricom Skiza Tunes and Airtel Hello Tunes), Artist's royalty rate shall be fifty percent (50%) of the Nominal Base Royalty Rate (i.e., an effective rate of six percent (6%) of Net Receipts after first deducting the 25% Container and Infrastructure Charge and the 15% Free Goods Allowance).

6.3 Foreign Sales, Mid-Price, Budget and Compilation Reductions.

(a) On exploitations outside the Republic of Kenya, the applicable royalty rate shall be reduced by fifty percent (50%) (i.e., 6% of Net Receipts on physical and 3% of Net Receipts on digital/streaming).

(b) On mid-price sales, compilations, EPs, Singles, and television/radio-advertised albums, the applicable royalty rate shall be fifty percent (50%) of the otherwise applicable rate.

(c) On synchronization licenses, master use licenses for films/commercials, and third-party flat-fee licenses, Company shall credit Artist's royalty account with twenty-five percent (25%) of Net Receipts after deducting a thirty-five percent (35%) Company licensing administration fee.

6.4 Producer and Featured Artist Deduction. Because Artist's royalty is an All-In Royalty, Company shall deduct from Artist's reduced royalty rate all royalties payable to third-party producers, beatmakers, mixers, and featured artists (typically three percent (3%) to four percent (4%) of gross receipts), which may reduce Artist's net payable royalty rate to zero until producer accounts are satisfied.

6.5 Zero Royalty Categories. No royalties whatsoever shall be payable on: (a) the fifteen percent (15%) Free Goods Allowance; (b) promotional copies, radio servicing copies, or charity tracks; (c) Music Video streams on YouTube or Facebook where Company has incurred video production costs; or (d) snippets, previews, or short-form social media uses (under 60 seconds) on TikTok, Instagram Reels, or YouTube Shorts.

7. 360-DEGREE ANCILLARY RIGHTS AND PASSIVE REVENUE SHARE

7.1 Grant of 360-Degree Revenue Participation. In consideration of Company's institutional brand support and execution of this Agreement, Artist hereby irrevocably grants, assigns, and agrees to pay to Company thirty-five percent (35%) of all Gross Ancillary Income earned or received by Artist from all Ancillary Entertainment Activities throughout the Territory during the Term, regardless of whether Company procured, negotiated, or contributed to the securing of such Ancillary Entertainment Activity (a "Passive and Active 360 Share").

7.2 Mandatory Direct Collection by Company. All third-party promoters, festival organizers, corporate brands, endorsement agencies, and digital platforms engaging Artist for any Ancillary Entertainment Activity shall be instructed to pay one hundred percent (100%) of Gross Ancillary Income directly into Company's bank account. Company shall deduct its thirty-five percent (35%) 360 Share first, apply any remaining sixty-five percent (65%) toward the recoupment of any unrecouped Recording, Video, or Marketing Advances under Clause 5.4, and remit any net balance to Artist during the next semi-annual accounting cycle.

7.3 Exclusive Personal Management and Booking Commission. In addition to (and not in lieu of) the thirty-five percent (35%) 360 Share under Clause 7.1, Company is hereby appointed as Artist's exclusive worldwide Personal Manager and Booking Agent during the Term, for which Company shall be entitled to a separate management and booking commission of twenty percent (20%) of Gross Ancillary Income (bringing Company's combined gross participation on live performances and brand endorsements to fifty-five percent (55%) of Gross Ancillary Income prior to production expense deductions).

7.4 Post-Term Five-Year Sunset Commission. Following the expiration or termination of the Term of this Agreement, Company shall continue to receive a post-term "Sunset Commission" of twenty-five percent (25%) of Gross Ancillary Income for a period of five (5) years after the end of the Term in respect of all live performances, endorsements, and entertainment activities entered into, renewed, or building upon goodwill established during the Term.

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8. MANDATORY CO-PUBLISHING AND CONTROLLED COMPOSITIONS

8.1 50% Copyright Assignment and 100% Exclusive Administration. Artist hereby irrevocably assigns, transfers, and conveys to Company's publishing division (Vanguard Music Publishing Kenya Ltd, hereinafter "Publisher") an undivided fifty percent (50%) ownership interest in the copyright (and one hundred percent (100%) of the Publisher's Share) in and to all Controlled Compositions written, co-written, or acquired by Artist prior to or during the Term, in perpetuity throughout the Territory, together with the sole and exclusive right to administer one hundred percent (100%) of the Controlled Compositions forever.

8.2 75% Statutory Rate Reduction and 10-Track Cap. All Controlled Compositions embodied on Masters hereunder are hereby licensed to Company at a mechanical royalty rate equal to seventy-five percent (75%) of the minimum statutory or industry-norm mechanical rate in effect on the date of initial recording, reduced further by fifty percent (50%) for non-album uses. Furthermore, the maximum aggregate mechanical royalty payable by Company in respect of any Album (regardless of whether the Album contains 12, 16, or 20 tracks) shall be strictly capped at ten (10) times the reduced 75% rate (the "10-Track Mechanical Cap").

8.3 Free Synchronization License. Artist hereby grants Company and Publisher a perpetual, worldwide, royalty-free synchronization license to use all Controlled Compositions in Music Videos, label promotions, television commercials, and corporate brand partnerships arranged by Company without any mechanical or synchronization payment to Artist.

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9. ACCOUNTING STATEMENTS, RESERVES AND AUDIT RESTRICTIONS

9.1 Semi-Annual Accounting Statements. Subject strictly to the suspension provisions of Clause 22.2 below, Company shall render royalty statements to Artist within ninety (90) days after the end of each semi-annual calendar period ending 30th June and 31st December, accompanied by any net sum shown to be due after all deductions, cross-collateralized recoupments, and tax withholdings.

9.2 35% Reserves Held for Eight (8) Accounting Periods. Company shall have the right to withhold and retain up to thirty-five percent (35%) of gross royalties otherwise payable in each accounting period as a "Reserve Against Returns, Credits, and Digital Platform Chargebacks", which Reserves may be held by Company without interest for up to eight (8) consecutive semi-annual accounting periods (four (4) years) from the period in which they were withheld.

9.3 Two-Year Incontestability Bar and Audit Preconditions. Every royalty statement rendered by Company (or deemed rendered under Clause 22.2) shall become conclusively binding and incontestable upon Artist unless Artist delivers specific written objections within twelve (12) months from the end of the applicable period. Artist may conduct at most one (1) audit during the entire Term, subject to the following strict preconditions:

(a) the audit must be conducted at Company's offices by a Partner of a "Big Four" international accounting firm (who is not compensated on a contingency basis);

(b) the auditor may only inspect high-level summary ledgers and shall have no right to inspect manufacturing records, DSP aggregator master statements, Skiza portal logins, third-party licensing contracts, or cross-collateralized expense receipts; and

(c) prior to commencing any inspection, Artist must deposit Kenya Shillings Five Hundred Thousand (KES 500,000) in cash with Company's advocates as security to reimburse Company's internal staff time and accounting costs in facilitating the inspection.

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10. COLLECTIVE MANAGEMENT ORGANIZATIONS (MCSK, KAMP, PRISK) AND POWER OF ATTORNEY

10.1 Irrevocable Redirection of CMO Distributions. Artist hereby authorizes and directs the Music Copyright Society of Kenya (MCSK), the Kenya Association of Music Producers (KAMP), the Performers Rights Society of Kenya (PRISK), PAVRISK, and all international collection societies to pay one hundred percent (100%) of all Producer, Performer, Composer, and Publisher royalties directly to Company.

10.2 Irrevocable Power of Attorney Coupled with an Interest. Artist hereby irrevocably constitutes and appoints Company and its Managing Director as Artist's true and lawful attorney-in-fact, in Artist's name, place, and stead, to execute, sign, seal, and file any and all KECOBO copyright assignments, CMO registration forms, Skiza portal mandates, third-party brand endorsement contracts, synchronization licenses, and legal releases, and to endorse and deposit in Company's bank account any cheques or M-Pesa remittances made payable to Artist. This Power of Attorney is coupled with an interest and is irrevocable in perpetuity.

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11. TRADEMARKS, SOCIAL MEDIA OWNERSHIP AND STAGE NAME

11.1 Assignment of Stage Name and Social Handles. Artist hereby assigns to Company fifty percent (50%) co-ownership in the professional stage name and trademark "John Doe" (and any variations or logos thereof) together with administrative ownership of all official social media handles, YouTube channels, Spotify for Artists profiles, and domain names associated with Artist during the Term. If Artist breaches this Agreement or becomes a "Leaving Member", Company may retain exclusive control of the official YouTube channel and social media accounts until all unrecouped Advances are repaid in cash.

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12. WARRANTIES, REPRESENTATIONS AND UNLIMITED INDEMNITY

12.1 Artist Warranties. Artist warrants and represents that: (a) Artist is over 18 years of age and under no disability or conflicting contract; (b) all Masters and Controlled Compositions are wholly original and do not infringe any copyright, trademark, or right of privacy; and (c) neither Artist nor any prior producer has granted any conflicting rights in the Masters or Controlled Compositions.

12.2 Indemnification and Immediate Withholding of All Funds. Artist shall indemnify, defend, and hold harmless Company and its officers, directors, licensees, and distributors from and against any and all claims, demands, damages, liabilities, settlement payments, and legal costs (on a full indemnity basis) arising out of any actual or alleged breach by Artist. Upon the assertion or threat of any claim (whether or not a lawsuit is filed), Company may immediately withhold and freeze one hundred percent (100%) of all Royalties and Ancillary Entertainment Income otherwise payable to Artist in an amount determined by Company in its sole discretion.

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13. DEFAULT, SUSPENSION AND INJUNCTIVE RELIEF

13.1 Unique and Extraordinary Services. Artist expressly acknowledges that Artist's services hereunder are of a special, unique, unusual, extraordinary, and intellectual character giving them a peculiar value, the loss of which cannot be reasonably or adequately compensated in damages in an action at law. Accordingly, Company shall be entitled as a matter of right (without the necessity of posting any bond or security) to ex parte temporary and permanent injunctive relief enjoining Artist from performing, recording, or releasing music or entering into any brand endorsement with any third party in breach of this Agreement.

13.2 Company's Right to Terminate Without Cause. Company may terminate the Term of this Agreement at any time without cause upon fourteen (14) days' written notice to Artist. Upon any termination (for cause or without cause), Company shall retain perpetual ownership of all Masters and Co-Publishing copyrights previously created, and the five-year Sunset Commission under Clause 7.4 and Ten-Year Re-Recording Restriction under Clause 4.4 shall remain in full force and effect.

13.3 Waiver of Artist's Right to Terminate. Artist acknowledges that no failure by Company to pay Royalties, render accounting statements, or release an Album shall be deemed a material breach going to the root of this Agreement. Artist irrevocably waives any right to terminate or rescind this Agreement or seek reversion of copyrights; Artist's sole and exclusive remedy for any proven breach by Company after a ninety (90) day written cure period shall be a claim for direct monetary damages capped at KES 100,000.

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14. LEAVING MEMBER AND GROUP COLLABORATION CLAUSE

14.1 Leaving Member Option. If Artist at any time forms a musical group, duo, or collective, or ceases to perform solo, Company shall have the irrevocable option to bind both Artist individually and every member of such group to separate Exclusive 360-Degree Agreements on the exact same terms as this Agreement, with all unrecouped Advances from this Agreement carried over and cross-collateralized against the group and solo accounts.

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15. KEY PERSON AND ASSIGNMENT BY COMPANY

15.1 Unrestricted Assignment by Company. Company may assign, sell, pledge, or transfer this Agreement, any Masters, any Controlled Compositions, or any rights hereunder in whole or in part to any third party, major label, distributor, or financial institution without Artist's consent. Artist may not assign any rights or delegate any obligations hereunder.

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16. FORCE MAJEURE AND ECONOMIC HARDSHIP SUSPENSION

16.1 Unilateral Suspension by Company. If Company's normal business operations are materially affected by any epidemic, civil commotion, internet disruption, power rationing, tax legislation change, or downturn in the Kenyan music market, Company may by notice suspend the running of the Term and suspend all obligations to fund recordings or pay Advances for the duration of such event plus six (6) months.

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17. LIFE AND DISABILITY INSURANCE ON ARTIST

17.1 Key-Man Insurance Policy Owned by Company. Company shall have the right at any time during the Term to take out life, health, and accident insurance policies on the life and voice of Artist in an amount up to Kenya Shillings Fifty Million (KES 50,000,000), naming Company as the sole and exclusive beneficiary thereof. Artist shall submit to any medical examinations required by Company's insurers, and Artist's estate shall have no claim to the proceeds of such insurance.

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18. TAXATION AND STATUTORY DEDUCTIONS

18.1 Artist's Tax Liability. All sums credited or paid to Artist are subject to applicable Kenyan Withholding Tax, Digital Content Monetization Tax, VAT, and international withholding taxes, all of which shall be borne solely by Artist.

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19. CONFIDENTIALITY AND PUBLIC STATEMENTS

19.1 Strict Non-Disclosure. Artist shall never disclose the financial terms, royalty rates, recoupment balances, or existence of any dispute under this Agreement to any journalist, blogger, podcast, or third party. Any breach of this Clause 19.1 shall entitle Company to deduct KES 1,000,000 as agreed liquidated damages from Artist's royalty and Ancillary accounts.

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20. NOTICES AND DEEMED SERVICE

20.1 Notice to Artist. Any notice from Company to Artist shall be deemed validly served immediately upon being sent by WhatsApp message or email to Artist's last known number or email address. Any notice from Artist to Company shall only be valid if delivered by registered post and hand-delivered to Company's Managing Director with a stamped acknowledgment receipt.

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21. GOVERNING LAW AND COMPULSORY ARBITRATION

21.1 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the Republic of Kenya, save to the extent that Artist has waived statutory rights as permitted by freedom of contract.

21.2 Confidential Commercial Arbitration. Any dispute arising out of this Agreement (save for Company's right to seek ex parte injunctive relief in the High Court of Kenya under Clause 13.1) shall be referred to confidential arbitration in Nairobi before a panel of three (3) senior commercial advocates appointed by Company's nominated appointing authority. Artist shall advance one hundred percent (100%) of the tribunal's deposit within fourteen (14) days of filing any claim, failing which Artist's claim shall be permanently barred.

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22. SUPERSEDING FINANCIAL AND OPERATIONAL OVERRIDES

22.1 Supremacy of Clause 22. The provisions of this Clause 22 are fundamental conditions precedent to Company's entry into this Agreement and shall override, supersede, and control over any conflicting provision in Clauses 1 through 21 or in any Schedule hereto.

22.2 Suspension of Accounting and Royalty Payments While Unrecouped (Override). Notwithstanding Clause 6.1, Clause 7.2, or Clause 9.1, or anything to the contrary contained in this Agreement, Company shall have no obligation to issue semi-annual accounting statements or remit any Recording Royalties, Mechanical Royalties, or Artist's remaining share of Gross Ancillary Income during any accounting period in which Artist's consolidated cross-collateralized Advance account remains unrecouped, or where Artist's accrued net payable royalties for that period are less than Kenya Shillings Two Hundred and Fifty Thousand (KES 250,000). During any such unrecouped period, one hundred percent (100%) of Artist's 65% remaining share of live performance and brand endorsement income under Clause 7.2 shall be retained by Company and applied toward the reduction of Artist's unrecouped Recording, Video, and Marketing Advance balance.

22.3 Automatic Collateral Assignment of Pre-Existing Catalogue (Override). Notwithstanding Clause 2.1 or Clause 4.1, as continuing security for the recoupment of the Recording Fund and all future Advances hereunder, Artist hereby assigns and transfers to Company ab initio and in perpetuity all right, title, and interest in and to Artist's entire pre-existing catalogue of previously released and unreleased songs, demos, and Master Sound Recordings recorded prior to the Effective Date (listed or unlisted in Schedule 3), which pre-existing catalogue shall be exploited by Company on the exact same royalty and recoupment terms as Masters recorded during the Term.

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23. SEVERABILITY AND ENTIRE AGREEMENT

23.1 Blue-Pencil Severability. If any clause or duration in this Agreement is held by a tribunal to be excessive, such clause shall not be void but shall be automatically enforced to the maximum extent and longest duration permissible, and the remainder of this Agreement shall remain in full force.

23.2 Entire Agreement. This Agreement and Schedules 1, 2, and 3 constitute the entire agreement between the Parties. Artist confirms that Artist has had the opportunity to read this Agreement and enters into it voluntarily.

SCHEDULE 1: CONTRACT PERIODS AND MINIMUM DELIVERY & RELEASE COMMITMENT (MDRC)

Contract Period | Minimum Delivery & Release Commitment (MDRC) | Inclusive Recording Fund (100% Recoupable) | Nominal Base Rate (Before Clause 6.2 & 22 Reductions)

Initial Contract Period | 1 Album (min. 12 Masters) + 4 Promotional Singles | KES 500,000 | 12% of Net Receipts (6% Digital/Skiza)

First Option Period | 1 Album (min. 12 Masters) + 4 Promotional Singles | KES 550,000 | 12% of Net Receipts (6% Digital/Skiza)

Second Option Period | 2 Albums (min. 24 Masters) + 6 Promotional Singles | KES 600,000 per Album | 12.5% of Net Receipts (6.25% Digital/Skiza)

Third Option Period | 2 Albums (min. 24 Masters) + 1 Greatest Hits LP | KES 650,000 per Album | 13% of Net Receipts (6.5% Digital/Skiza)

Fourth Option Period | 2 Albums (min. 24 Masters) + 6 Promotional Singles | KES 700,000 per Album | 13.5% of Net Receipts (6.75% Digital/Skiza)

Fifth Option Period | 2 Albums (min. 24 Masters) + 1 Live Album | KES 750,000 per Album | 14% of Net Receipts (7% Digital/Skiza)

SCHEDULE 2: IRREVOCABLE MANDATE TO CMOs (MCSK / KAMP / PRISK) AND SKIZA AGGREGATORS

TO:

1. The Chief Executive Officer, Music Copyright Society of Kenya (MCSK), Nairobi.

2. The Chief Executive Officer, Kenya Association of Music Producers (KAMP), Nairobi.

3. The Chief Executive Officer, Performers Rights Society of Kenya (PRISK), Nairobi.

4. Safaricom PLC (Skiza Tunes Content Aggregation Portal) and all Digital Service Providers.

RE: IRREVOCABLE DIRECTION TO PAY ROYALTIES TO VANGUARD SOUND & VISION LABEL GROUP LIMITED

I, JOHN DOE (ID No. 38492011), professionally known as "John Doe", hereby irrevocably notify, authorize, and direct you to register Vanguard Sound & Vision Label Group Limited as the sole exclusive owner, producer, and publisher of all my past, present, and future musical works and sound recordings, and to remit one hundred percent (100%) of all royalties, mechanicals, broadcast distributions, and Skiza ringback revenues directly to Vanguard Sound & Vision Label Group Limited's bank account until further notice signed by Vanguard's Managing Director.

SCHEDULE 3: CAPTURED PRE-EXISTING CATALOGUE

Pursuant to Clause 22.3, all prior singles, EPs, demos, YouTube uploads, and unreleased vocal recordings created by John Doe prior to 15th November, 2026 (including all digital distributor profiles on DistroKid, TuneCore, and Mdundo) are hereby assigned and transferred in perpetuity to Vanguard Sound & Vision Label Group Limited.

SIGNATURES

IN WITNESS WHEREOF, the Parties hereto have executed this Exclusive 360-Degree Recording, Co-Publishing, Personal Management and Ancillary Rights Agreement as a Deed on the Effective Date first written above.

SIGNED, SEALED AND DELIVERED for and on behalf of VANGUARD SOUND & VISION LABEL GROUP LIMITED:

Signature: _____

Name: Marcus Omondi Vance

Title: Managing Director & Executive Producer

Date: 15th November, 2026

SIGNED, SEALED AND DELIVERED by the ARTIST:

Signature: _____

Name: JOHN DOE (p/k/a "John Doe")

ID Number: 38492011

Date: 15th November, 2026